

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Weinstock	Team: Team # 3	CCRB Case #: 201003381	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 03/11/2010 4:00 AM	Location of Incident: 120th Precinct stationhouse	Precinct: 120	18 Mo. SOL 9/11/2011	EO SOL 9/11/2011	
Date/Time CV Reported Sun, 03/14/2010 12:42 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 03/14/2010 12:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			120 PCT
2. POM Brian Schulman	08380	939435	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers used physical force against § 87(2)(b)	
B. POM Brian Schulman	Force: Officer Schulman used physical force against § 87(2)(b)	

Case Summary

On March 14, 2010, § 87(2)(b) filed this complaint with the CCRB via the call processing system. On March 11, 2010, at approximately 3:00 a.m., § 87(2)(b) was with two of her friends "playing around" by a store on Broad and Stapleton Streets in Staten Island. An unidentified officer approached the group and asked for her identification, which she provided. The officer stated that § 87(2)(b) had a warrant. § 87(2)(b) went with the officer to the 120th Precinct stationhouse. In the stationhouse, § 87(2)(b) asked to use the bathroom. The officers let her. As soon as § 87(2)(b) had her pants down a little bit, a female officer stated that § 87(2)(b) could not use that bathroom. The officer then pulled § 87(2)(b) out of the bathroom. § 87(2)(b) was about to pull down her pants to use a different bathroom when the officers entered the bathroom and threw her onto the floor. An officer pulled § 87(2)(b)'s hood over her head and began to hit her. The officers were hitting § 87(2)(b) in the head and hitting her arms against the floor. This caused bruising. One of the officers, believed to be female but § 87(2)(b) could not see the officer, grabbed § 87(2)(b)'s head and stated, "I could snap your neck and tell them you fell." The officers eventually stopped and § 87(2)(b) observed seven to ten uniformed officers. § 87(2)(b) was released from the 120th Precinct stationhouse with a Desk Appearance Ticket for assault, written by PO Brian Schulman, tax registry number 939435, who is assigned to the 120th Precinct.

§ 87(2)(g)

On March 17, 2010, a please call letter was sent to § 87(2)(b). On March 18, 2010, attempts were made to contact § 87(2)(b) at both of her telephone numbers and messages were left. On the same date, § 87(2)(b) contacted the CCRB and scheduled an interview for April 1, 2010. On March 26, 2010, § 87(2)(b) contacted the CCRB and stated that she would come for her interview on April 1, 2010. On April 1, 2010, § 87(2)(b) failed to arrive at the CCRB for her scheduled interview. She did not call beforehand to cancel or reschedule. On the same date, a missed appointment letter was sent to § 87(2)(b). On April 2, 2010, attempts were made to contact § 87(2)(b) at both of her telephone numbers and messages were left. On April 5, 2010, left a message for § 87(2)(b) with her mother who stated that § 87(2)(b) did not have a working telephone but she would have § 87(2)(b) contact the CCRB. On the same date, a check of the New York City Department of Correction Inmate Lookup System showed that § 87(2)(b) was not incarcerated. As of the writing of this report, § 87(2)(b) has failed to contact the CCRB and neither of the letters she was sent has been returned to the CCRB as undeliverable. § 87(2)(g)

Team: 3

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Investigator: _____

Signature

Print

Date

Supervisor: _____

Title/Signature

Print

Date

Reviewer: _____

Title/Signature

Print

Date

Reviewer: _____

Title/Signature

Print

Date